

24NNCV00427 24NNCV00427

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-30

Motion: MOTION TO COMPEL FURTHER DISCOVERY RESPONSES TO REQUESTS FOR PRODUCTION SET TWO

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Case Number: 24NNCV00427 Hearing Date: July 30, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JAMES

MATYAS, et al.,

Plaintiff(s),

vs.

WEAVER

& ASSOCIATES, INC., et al.,

Defendant(s).

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CASE NO.: 24NNCV00427

[TENTATIVE]

ORDER RE: MOTION TO COMPEL FURTHER DISCOVERY RESPONSES TO REQUESTS FOR
PRODUCTION SET TWO

Dept.

3

8:30

a.m.

July 30,

2026

)

On July 6, 2026, Plaintiff James Matyas
("Plaintiff") filed this motion for an order compelling further responses to
Requests for Production of Documents, Set Two from defendants Weaver &
Associates, Inc., Dana Dattola, Matthew Weaver, Denise Weaver, and Ralph Weaver
(collectively, "Defendants").

Plaintiff seeks to compel the
production of carrier financial statements, general ledger database files, and
system reports sufficient to accurately verify revenue data necessary to
calculate his damages under the governing 1995 Management Services Agreement

("MSA").

On July 17, 2026, Defendants filed an opposition brief arguing, in part, that the motion was moot because amended responses were served on July 15, 2026.

Plaintiff's reply brief, filed on July 22, 2026, argues that these newly-served responses are still problematic "[f]r the categories that remain in dispute – pre-2014 records, bank records, and auditable firm-wide carrier totals." (Reply, p. 2.) Plaintiff argues that Defendants refuse to produce bank records beyond checks and check-register entries payable to Plaintiff and will not provide "auditable carrier-by-carrier and year-by-year firm totals." (Reply, p. 2.)

The problem with proceeding to rule on the merits of Defendants' amended responses is that the Court is not aware which of the RFPs "remain in dispute." Therefore, the Court continues the hearing on this motion to _____ at 8:30 a.m. in Department 3 of Alhambra Courthouse. Prior to this hearing, the parties are ordered to meet and confer, in person or over the telephone, over the amended responses and submit a joint separate statement identifying the request, operative responses, and a concise statement from each party explaining why a further response should or should not be ordered.

Plaintiff should keep in mind that the Court cannot order the production of documents that do not exist and that the Court has not been presented with any evidence that documents relevant to his damages claims have been wrongfully withheld or destroyed. Plaintiff should also provide authority that an individual, such as Dana Dattola, is held responsible for producing corporate records simply by virtue of their relationship to the corporation; the Court is unaware of any cases that find corporate records in the "possession, custody, or control" of an individual. The corporation is the proper target of that request.

Last, Defendants must provide a date certain by which their document production and privilege logs will be complete. The Court is not amenable to their responses which provide for a rolling production with no end date.

Plaintiff to give notice.

Dated
this 30th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.